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File No.: EXP202300320

## RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the complainant), on December 3, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against the TOWN HALL OF PANTOJA with NIF P4512900D (hereinafter, the respondent), for the installation of a video surveillance system located at DIFFERENT POINTS OF THE MUNICIPALITY OF PANTOJA, TOLEDO, with indications of a possible breach of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

The complainant states that he is the spokesperson for the PSOE Municipal Group in the TOWN HALL OF PANTOJA and that this Town Hall has installed various cameras in the municipality that face the public road, without these being identified by the required informative signs of the surveillance area. He points out that this circumstance was notified to the Town Hall and to its Data Protection Delegate, who prepared a report dated April 7, 2022, urging the replacement of signs that, according to the Town Hall, had been stolen.

He provides two images of unmarked cameras in public roads, the Minutes of the Town Hall Plenary dated April 29, 2022, and a report prepared by the Town Hall's DPD indicating that informative signs of the surveillance area must be replaced.

The documents provided are:

- Photographic report
- Others

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on January 17, 2023, as noted in the acknowledgment of receipt in the file.

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No response has been received to this forwarding letter.

THIRD: On March 3, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On April 21, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, it stated that:

“As can be seen in the situational plan of the cameras, which is attached as Document No. 2 to this letter. There are twenty cameras installed in the municipality, one of which is out of service, and these cameras are mostly accompanied by the corresponding informative signs, which are located on the

main roads. (...)

As can be appreciated in the situational plan of the cameras and the corresponding informative signs, they are located in sufficiently visible places.

Likewise, the cameras purchased by the Town Hall of Pantoja in 2020 from the company Comunitelia Comunicaciones S.L. were accompanied by the corresponding informative signs, which were installed on the main roads and are sufficiently visible.

Therefore, the Town Hall has been complying with the duty of information provided for in the regulations, since since the cameras were installed, informative signs have been installed for them; however, due to force majeure situations beyond my represented party, such as the theft of these or adverse weather conditions, some signs were lost; however, despite this situation, the Town Hall has already proceeded to replace them as noted in the situational plan attached to this letter. (...)

On the other hand, Document No. 4 is attached, which is the contract signed with the company COMUNITELIA, as responsible for the installation and maintenance of the video surveillance cameras and informative signs. Regarding the processing of the images taken with the installed cameras, we can inform that viewing is restricted and only the Local Police has access to those files, which are deleted within one month."

SIXTH: On November 28, 2023, a proposal for resolution was made, proposing that the Director of the Spanish Agency for Data Protection impose on the TOWN HALL OF PANTOJA, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a warning sanction, and that it order the TOWN HALL OF PANTOJA, pursuant to Article 58.2.d) of the GDPR, to

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3/10

a period of ten working days, prove that the informational device has been placed in all video-surveilled areas, locating this device in a sufficiently visible place, both in open and closed spaces.

SEVENTH: On December 14, 2023, the responding party presents allegations to the proposed resolution, stating:

"That in compliance with the duty of information, we attach to this document a report from the local police of the Pantoja City Council. Through which evidence of the informational signs placed on the security cameras is provided. The location of cameras installed at different points in the municipality of Pantoja is detailed, both at entrances, exits, and points of interest for the maintenance of public safety and traffic control."

From the actions taken in this procedure and the documentation in the file, the following have been established:

#### PROVEN FACTS

FIRST: The claiming party states that the City Council has installed various cameras in the municipality that face public roads, without the same being identified by the required informational signs of the video-surveilled area. The Data Protection Delegate issued a report on April 7, 2022, urging the replacement of signs that, according to the City Council, were stolen.

SECOND: The Mayor of the Pantoja City Council states, in his allegations to the Initiation Agreement, that, as can be seen in the situational plan of the cameras that is attached, there are twenty cameras installed in the municipality, with one of them out of service, and that these cameras are mostly accompanied by the corresponding informational signs. The cameras purchased by the Pantoja City Council in 2020 from the company Comunitelia Comunicaciones S.L. were accompanied by the corresponding informational signs, which were installed on the main roads and are sufficiently visible. Since the cameras were installed, informational signs have been placed for them. The contract signed with the company COMUNITELIA, as responsible for the installation and maintenance of the video surveillance cameras and the informational signs, is attached.

THIRD: The responding party states, in the allegations to the proposed resolution, that in the report

from the local police of the Pantoja City Council that is attached, evidence of the informational signs placed on the security cameras and their location at different points in the municipality of Pantoja is provided, both at entrances, exits, and points of interest for the maintenance of public safety and traffic control.

## LEGAL GROUNDS

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4/10

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Response to Allegations

In response to the allegations presented by the responding entity to the Initiation Agreement, the following should be noted:

In the situational plan provided by the City Council in its allegations to the Initiation Agreement, the 20 cameras that they claim to be installed are indicated. However, only 9 of those cameras have a video surveillance sign, as also noted in the plan.

On the other hand, in the contract with the installing company that is provided, it states that the maintenance will end on December 31, 2020.

However, upon examining the allegations of the responding party to the Proposed Resolution, there is a report from the local police of the Pantoja City Council, which already shows the informational signs placed on the security cameras and their location at different points in the municipality of Pantoja.

III

### The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

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5/10

IV

### Infringement

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, whether public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the security of persons and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the data subjects with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty established in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this regard, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a publicly visible area or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether interior or exterior. If the monitored space has several access points, this indication of a monitored area must be provided at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

V

#### Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

1.- Natural or legal persons, whether public or private, may establish a video surveillance system with the aim of preserving the security of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved by other means that are less intrusive to the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained cannot be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled, in the terms already indicated.

4.- Images of public roads cannot be captured, since the processing of images in public places, unless there is government authorization, can only be carried out by the Security Forces and Bodies.

In some cases, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the security purpose.

That is, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location.

And, in such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the security of persons and property, as well as their facilities.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras aimed at the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted.

In no case will the use of surveillance practices beyond the environment subject to the installation be

accepted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Images may not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces.

It is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

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7/10

5.- The images may be retained for a maximum period of one month, except in cases where they must be kept to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours. A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set out in Article 5 of Law 5/2014 on Private Security, of April 4. The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows assessing the situation of the controller regarding the personal data processing they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

VI

Administrative Infraction

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8/10

It is considered that the facts presented have violated the provisions of Article 13 of the GDPR, which constitutes the commission of an infraction classified in Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

b) the rights of the data subjects under Articles 12 to 22; (...).”

For the purposes of the statute of limitations for infractions, the infraction indicated in the previous

paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein, and in particular, the following:

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law.”

## VII

### Sanction

Article 83 “General conditions for the imposition of administrative fines” of the GDPR in its paragraph 7 establishes:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Regime applicable to certain categories of controllers or processors” of the LOPDGDD provides the following:

“1. The regime established in this article shall apply to the processing for which they are responsible or which they process:

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

2. When the controllers or processors listed in paragraph 1 commit any of the infractions referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution sanctioning them with a warning. The resolution shall also establish the measures that should be adopted to cease the conduct or correct the effects of the infraction that has been committed.

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9/10

The resolution will be notified to the person responsible or in charge of the processing, to the body to which they hierarchically depend, if applicable, and to the affected parties who had the status of interested parties, if applicable.

5. The actions taken and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

For all these reasons, it is considered that the corresponding sanction is a warning.

## VIII

### Conclusion

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE a warning to the TOWN HALL OF PANTOJA, with NIF P4512900D, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to the TOWN HALL OF PANTOJA.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for

Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded. 938-21112023

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10/10